Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
**HON. YOLANDA V. TORRES**

**Date: June 15, 2026**

**Department C-15 hears law and motion on Mondays at 1:45 p.m.**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

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| 1 | **Blue Atlas, LLC v. Those Certain Underwriters**<br><br>2023-01332937<br><br>Summary Judgment/ and or Summary Adjudication | Defendant's Motion for Summary Judgment, or in the Alternative Summary Adjudication regarding Plaintiff's Second Cause of Action for Breach of Implied Covenant of Good Faith and Fair Dealing is GRANTED.<br><br>The Court declines to rule on the objections submitted on the basis they are immaterial to the disposition of the motion.<br><br>A claim for breach of contract requires: "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." *D'Arrigo Bros. of California v. United Farmworkers of America* (2014) 224 Cal.App.4th 790, 800.<br><br>Defendant has met its burden of proving Plaintiff cannot establish one of the essential elements of its breach of contract claim. The builds risk insurance policy (the Policy) defines a "Covered Property" as a "Building Under Construction, meaning the building or structure described in the Declarations while in the course of construction …." |

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| | | The phrase "under construction" within the insurance context has already been interpreted by the California Supreme Court in *TRB Investments, Inc. v. Fireman's Fund Ins. Co.* (2006) 40 Cal.4th 19.<br><br>The property was not under construction at the time either fire was started. In response to Defendant's special interrogatory requesting all facts regarding Plaintiff's contention the property was "in the course of construction," Plaintiff failed to identify any acts which could constitute construction as defined in TRB. (Picker Decl., Ex. F., No. 1.) Plaintiff contacted contractors, took measurements, assessed costs and received estimates, and inspected the property. (Picker Decl., Ex. F., No. 1.)<br><br>Thus, the burden shifts to Plaintiff to prove there is an issue of material fact regarding whether the property was under construction and, thus, covered by the Policy on the dates of the fires.<br><br>Plaintiff has failed to meet its burden of showing there is a dispute of material fact.<br><br>Defendant shall give notice. |
| 2 | **Capital Resource Int'l v. Eplex, Inc.**<br><br>2025-01533010<br>Motion to Set Aside/vacate Default Judgment | Defendants Eplex, Inc. and Sunhwa Lee's Motion to Set Aside Default and Default Judgment is GRANTED in part and DENIED in part. The Motion is GRANTED regarding Defendant Lee and DENIED as to Defendant Eplex, Inc.<br>The Court finds the failure to timely file an answer and thus Defendant Lee's default and default judgment resulted from excusable neglect. "Within the context of Code of Civil Procedure section 473(b) neglect is excusable if a reasonably prudent person under similar circumstances might have made the same error." (*Austin v. Los Angeles Unified School Dist.* (2016) 244 Cal.App.4th 918, 929.)<br><br>As an initial matter, Defendant Lee filed this motion on behalf of both defendants. However, except in a small claims proceeding, a corporation cannot represent itself. (*Merco Const. Engineers, Inc. v. Mun.Ct.* (*Sully-Miller Contracting Co.*) (1978) 21 Cal.3d 724, 731.) Nor can a non-lawyer representative of the corporation appear on the corporation's behalf as it would be tantamount to the unlicensed practice of law. (See *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284, fn. 5.). Thus, the motion is DENIED as to Defendant Eplex.<br><br>Defendant Sunhwa Lee is ordered to file an answer (on Lee's behalf) within 10 days. |
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| 4 | **Ghadiri v. Adam**<br><br>2025-01481407<br><br>Leave to Amend DENIED. | Plaintiff, Adam Ghadiri's Motion for Leave to Amend is DENIED.<br><br>Defendant's requests for judicial notice are granted as records of this Court. (Evid. Code, § 452(d).)<br><br>Defendant's counsel is reminded Code Civ. Proc., § 1010.6(c)(1) [**requires express consent for electronic service of unrepresented parties**].<br><br>The Court has already determined the causes of action are beyond the statute of limitations. Plaintiff's proposed amendment contains the same fatal defect within the original complaint. Exhibit B to the proposed amendment is an email from June 5, 2021 acknowledging that Plaintiff was aware of the alleged facts giving rise to the fraud claim. Thus, the delayed discovery rule could only delay accrual of the statute of limitations until June 5, 2021.<br><br>Plaintiff's 3rd and 4th causes of action for violation of Civil Code § 1102 and 2079 are similarly barred by the statute of limitations.<br><br>Therefore, Plaintiff is denied leave to amend.<br><br>Plaintiff shall give notice. |
| 5 | **Hull v. Knickerbocker Prop. Inc., XL**<br><br>2025-01493736<br>Strike Portions of First Amended Complaint | The motion of Defendants Sentinel Real Estate Corporation and Knickerbocker Properties, Inc. XL to strike portions of the first amended complaint of Plaintiffs Michael Hull and Paige Meskimen is GRANTED with 30 days' leave to amend.<br><br>If plaintiffs choose to amend, they should specify the causes of action for which punitive damages are sought as well as the specific conduct supporting that request.<br><br>According to *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1210, subdivision (a) of Civil Code section 3294, authorizes an award of punitive damages in noncontract actions where it is proven by clear and convincing evidence that the defendant has been guilty of oppression or malice. Oppression means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. Ibid.<br><br>As amended in 1987, malice based upon a conscious disregard of the plaintiff's rights requires proof that the defendant's conduct is "despicable" and "willful." *Lackner v. North*, supra,135 Cal.App.4th at p. 1211. The 1987 amendment also increased the burden of proof so that malice or oppression must be established by clear and convincing evidence. Ibid.<br><br>Plaintiffs have not clearly identified the conduct that purportedly justifies an award of punitive damages. Nor have they identified the cause or causes of action for which such |

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| | | damages are sought. Not all causes of action in the FAC can support a claim for punitive damages.<br><br>Defendants shall give notice. |
| 6 | **Huynh v. Williams**<br><br>2024-01436961<br><br>Pro Hac Vice Admission | The application of Texas attorney Minh-Tam (Tammy) Tran to appear pro hac vice as counsel for Defendant Gerard Richard Williams III in this matter complies with all applicable requirements and is hereby GRANTED pursuant to California Rules of Court, Rule 9.40.<br><br>Moving party shall give notice. |
| 7 | **Leventhal v. Home Depot, USA, Inc.**<br><br>2025-01474333<br><br>Motion for Preference Denied | The Motion of Plaintiffs Dorothy and Robert Leventhal for an order establishing their entitlement to a preferential trial date that is within 120 days of hearing is DENIED.<br><br>Subdivision (a) of Code Civ. Proc. § provides:<br>(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:<br>(1) The party has a substantial interest in the action as a whole.<br>(2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.<br><br>Despite the submission of exhibits and the declaration of their attorney, Plaintiffs have not shown that their health is in such condition that advancing the trial is necessary to prevent prejudice to them in the litigation.<br><br>Plaintiff shall give notice. |
| 8 | **Loeffler v. Assoc. Lien Service, Inc.**<br><br>2016-00873201<br><br>Motion to Compel Further Response to set of Post-Judgment RFP | The motion filed by Judgment creditor Trabuco Highlands Comm. Assoc. to compel further response to set of post-judgment requests for production and sanctions is DENIED.<br><br>The meet and confer declaration submitted by judgment creditor with the motion does not meet the requirements set forth in section Code Civ. Proc § 2016.040(a).<br><br>Counsel for Judgment creditor, Amy Hammond declares that she sent two meet and confer letters to counsel for judgment debtor on December 22, 2025 and January 8, 2026. She never declares that she made any attempts to meet and confer with judgment debtor's counsel by person, telephone, or videoconference. Nor does she declare that she made any attempts to meet and confer with counsel for judgment debtor after judgment debtor served the supplemental response on January 13, 2026. |

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| | | Thus, the motion does not meet the requirements of Code Civ. Proc. § 2031.210(b). The motion is DENIED.<br><br>Defendant Trabuco Highlands Comm. Assoc. shall give notice. |
| 9 | **Luna v. Hyundai Motor America**<br><br>2023-01339476<br><br>Motion to Enforce Settlement | Plaintiffs, Santiago Luna and Jonathan Luna have shown the parties entered a settlement agreement which provided for the Court to retain jurisdiction pursuant to section Code Civ. Proc. § 664.6. Plaintiffs' request to enter judgment pursuant to the settlement is GRANTED.<br><br>The settlement required Defendant to schedule the vehicle surrender within 60 days and for Plaintiffs to provide vehicle registration and other necessary documents to effectuate the transfer. (Ex. A, ¶ 3.) Plaintiffs assert Defendant failed to timely schedule the surrender and Defendant asserts Plaintiffs failed to timely provide current registration. Since the 60-day surrender period has passed, enforcing the settlement agreement would apparently require the Court to "create material terms," such as imposing a new transfer deadline, which section 664.6 does not allow. (See *Hernandez v. Board of Education* (2004) 126 Cal.App.4th 1161-1175-1176.) Therefore, the motion is DENIED without prejudice as to enforcement of the settlement.<br><br>The parties are **strongly encouraged** to meet and confer to resolve this dispute informally to avoid wasting judicial resources and incurring further attorney fees. The Court may impose monetary sanctions against either or both parties and/or their counsel if the Court finds they have failed to engage in good-faith efforts to comply with this order and complete the settlement in good faith.<br><br>Plaintiffs shall give notice. |
| 10 | **Morrell v. City of Huntington Beach**<br><br>2025-01459049<br><br>Motion for Summary Judgment Granted | Defendant City of Huntington Beach's Motion for Summary Judgment is GRANTED.<br><br>The City's objections to evidence are sustained.<br><br>However, the Court declines to rule on any objections improperly asserted in the parties' respective separate statements that were not also filed separately as required. (See Cal. Rules of Ct., rule 3.1354(b); *Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1, 8-9.<br><br>The City contends it is entitled to summary judgment on the grounds that (1) it did not have either actual or constructive notice of the allegedly dangerous condition, and (2) Plaintiff cannot establish that a negligent act of a City employee created the allegedly dangerous condition. |

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| | | Government Code § 835 sets forth the parameters when a public entity is liable for injury caused by a dangerous condition. Government Code § 835.2 explains the notice requirements referenced in Government Code § 832.<br><br>Plaintiff has provided no evidence or established a triable material issue that a negligent act of any City employee created the dangerous condition.<br><br>The City did not have actual notice of the condition of the sidewalk prior to the incident since there were no previous reports of the condition of the sidewalk or injuries caused by the condition of the sidewalk. Plaintiff has not submitted admissible evidence refuting the City's evidence.<br><br>Regarding constructive notice, Plaintiff cannot prove the condition was sufficiently obvious. Plaintiff concedes in her discovery response that the condition was not open and obvious.<br><br>Defendant shall give notice. |
| 11 | **Ramos v. General Motors, LLC**<br><br>2025-0145992<br><br>Motion for Attorney Fees | Plaintiff, Michele L. Ramos' motion for award of reasonable attorneys' fees, costs and expenses is GRANTED, as modified.<br><br>The court awards attorneys' fees of $10,665 ($450 x 23.7 hrs.). Costs: Plaintiff has filed a Memorandum of Costs in which she seeks $578.76 in costs. Plaintiff is awarded $578.76 in costs.<br><br>[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.)<br><br>"As the plain wording of section 1794, subdivision (d) makes clear, the trial court is 'to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged." (*Ibid.)*<br><br>Defendant challenges the total number of billable hours claimed by Plaintiff's counsel.<br><br>First, Defendant challenges the 1.9 hours billed by Plaintiff's counsel for pre-engagement work. Time spent evaluating a potential client prior to engagement is not recoverable, therefore, the hours requested are reduced by 1.9. |

Second, Defendant challenges the 3.3 hours spent on client intake and pre-litigation tasks. The time spent is excessive and reduced by 0.5 hours.

Third, Defendant challenges the 0.8 hours billed by Plaintiff's counsel for preparing the complaint. Although the complaint was drafted based on the firm's template, 0.8 hours is reasonable and therefore the court declines to exclude the fees.

Fourth, Defendant challenges the 0.6 hours billed by Plaintiff's counsel for reviewing Defendant's form answer. The time spent is reasonable and therefore the court declines to exclude the fees.

Fifth, Defendant challenges 1.4 hours billed by Plaintiff's counsel to discuss initial disclosures with Plaintiff and draft the initial disclosures on the grounds it is excessive and improperly block-billed. (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1010 ["Trial courts retain discretion to penalize block billing when the practice prevents them from discerning which tasks are compensable and which are not."].) Here, the block-billing by Plaintiff does not prevent the court from determining whether the time billed is compensable. Therefore, the court declines to exclude fees for the 1.4 hours for drafting the initial disclosures and discussing them with Plaintiff.

Sixth, Defendant challenges the 1.6 hours billed by Plaintiff's counsel to review Defendant's initial disclosure and 81 pdf documents. Defendant argues that many of these documents are uniform booklets or manuals like the service policy manual that counsel has reviewed previously in other matters he has pending against Defendant and it therefore should not have taken more than an hour to adequately review these standardized documents. The amount billed is excessive and reduced by 0.5 hours.

Seventh, Defendant challenges 1.2 hours billed by Plaintiff's counsel on August 18 to prepare for and attend the CMC on the grounds the hearing was not necessary and could have been avoided by filing a Notice of Settlement because Plaintiff had already executed a settlement agreement on August 8. Plaintiff has shown since the vehicle repurchase and restitution were not completed until surrender on September 10, 2025, appearing for the CMC and advising the court of the status was reasonable. However, the amount billed for preparing for the CMC by reviewing "complaint, case status, and other information on file" is excessive and hours requested are reduced by 0.3 hours.

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| | | Eighth, defendant challenges the 3.4 hours billed for negotiating vehicle surrender between August 21, 2025 and November 5, 2025. Plaintiff has block-billed the time and several of the entries are for scheduling surrender of the vehicle which is an administrative task that should not be billed at an attorney rate. Therefore, the amount billed is reduced by 0.8 hours.<br><br>Nineth, Defendant challenges 1.3 hours billed by Plaintiff's counsel for internal communications on administrative and case management discussions. The court reduces the hours requested by 0.3 hours for internal communication on administrative tasks.<br><br>Tenth, Defendant challenges 6.9 hours billed in communications with Plaintiff. The amount billed is reasonable and the court declines to exclude the requested fees.<br><br>Eleventh, Defendant challenges 1.3 hours on administrative and case management tasks. Purely clerical or secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them. (*Missouri v. Jenkins* (1989) 491 U.S. 274, 288, fn. 10.) However, Defendant has failed to identify any dates of the challenged billing entries. Therefore, the request to exclude time billed on administrative and case management tasks is denied.<br><br>Lastly, Defendant challenges the 2.2 hours billed to draft the fee Motion on the grounds the fee motion comprises of a generic 7-page motion and Geoulla's declaration is substantially the same from case to case. The amount requested is excessive and reduced by 0.5 hours.<br><br>Based on the foregoing, the hours requested are reduced by 4.8. The court awards attorneys' fees of $10,665 ($450 x 23.7 hrs.).<br><br>Plaintiff has filed a Memorandum of Costs in which she seeks $578.76 in costs. Defendant failed to file a motion to tax costs, and the time to do so has passed. (Cal. Rules of Ct., Rule 3.1700, subd. (b)(1). Plaintiff is awarded $578.76 in costs.<br><br>Moving party shall give notice. |
| 12 | **SBS Trustdeed Network v. Estate of Elaine Thomas**<br><br>2023-01338514<br><br>Motion for Leave to Intervene | Petitioner Bourbon Holdings, LLC's ("Bourbon Holdings") motion for an Order allowing Bourbon Holdings to file a complaint in intervention, seeking a release of interpleaded funds is DENIED.<br><br>Here, Bourbon Holdings is already a party to the action. On 4-26-24, Cross-Complainant Randall Sharp filed a Verified Cross-Complaint against Bourbon Holdings for Nullification of |

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| | | Contract, Breach of Contract, and Declaratory Relief. Bourbon Holdings filed an answer to the Cross-Complaint on 6-17-24. Therefore, Bourbon Holdings is already a party to the action and not a third party entitled to intervene pursuant to section 387. |
| 13 | **Stranger v. McKenna Motors HB**<br><br>2020-01152783<br><br>Petition to confirm arbitration award | Defendants (McKenna Motors HB, Neda Ingram and Danny McKenna) motion to confirm the arbitrator's decision dismissing Plaintiff's claims for failure to prosecute is GRANTED. The request for costs against Plaintiff is DENIED.<br><br>The arbitrator's award dated 2/9/26 found that Plaintiff had failed to prosecute the action and made it difficult for Defendants to defend the action, mandating dismissal of the over-five-year-old case.<br><br>The arbitrator found that although FEHA does not generally allow Defendants to recover attorney fees, Defendants were entitled to recover costs and expenses as the prevailing party under the California Arbitration Act and JAMS Employment Arbitration Rules.<br><br>The arbitrator awarded Defendants total fees and costs of $76,267.50 which included reimbursement of the arbitrator's nonrefundable $64,805.00 retainer, the arbitrator's fees of $7,062.50 for reviewing the motion to dismiss, and Defendants' fees/costs associated with drafting the motion to dismiss.<br><br>The arbitrator did not make a finding that the action was frivolous, unreasonable, or groundless under FEHA. Although the arbitrator identified the monetary award as "sanctions," in fact the award constituted the arbitrator's fees as well as certain of Defendants' fees and costs. Under Armendariz and Government Code section 12965, the arbitrator's award of sanctions, fees, and/or costs against Plaintiff exceeded their legal authority.<br><br>Defendants shall give notice. |
| 15 | **Melchor v. Kia America, Inc.**<br><br>2025-01493559<br><br>Demurrer to Complaint | Defendant Kia America, Inc.'s Demurrer to Plaintiff's Complaint is OVERRULED.<br><br>Defendant's request for judicial notice of KIA having opted into the new lemon law procedures of Code of Civil Procedure section 871.20 as shown on the official California Department of Consumer Affairs website is granted.<br><br>As to causes of action 1st – 4th, Defendant asserts these causes of action are barred by the six-year statute of repose set out under Code of Civ. Proc. § 871.20. |

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| | | Plaintiff alleges he entered into a warranty contract regarding a 2018 Kia Optima on 6/30/18. The complaint was filed six years, 11 months, and 28 days later, on 6/27/25.<br><br>Code of Civ. Proc. § 871.21, became effective on 1/1/25. Here, Defendant maintains Plaintiff filed this action nearly seven years from the date of original delivery of the vehicle, making the Song-Beverly claims untimely, and Plaintiff fails to plead facts establishing tolling under subdivision (c).<br><br>In opposition, Plaintiff asserts that section 871.21's time limits do not apply to the present case because they do not apply retrospectively. Specifically, Plaintiff argues that requiring him to file suit within six years would have imposed a filing deadline in June 2024, before the new time limitation even became effective.<br><br>"It is well established that the Legislature may reduce the period within which an action may be commenced, since a statute of limitations affects the remedy only and does not impair the cause of action itself. However, a statute shortening the period of limitations cannot be applied retroactively to wipe out an accrued cause of action that is not barred by the then applicable statute of limitations. To avoid the unconstitutional effect of retroactive application, a statute must be applied prospectively to such causes of action. Even when applied prospectively, the claimant must be allowed a reasonable time within which to proceed with his cause of action." See *Niagara Fire Ins. Co. v. Cole* (1965) 235 Cal.App.2d 40, 42–43.<br><br>Plaintiff has pled sufficient facts to support timely claims under the Song-Beverly Act.<br><br>5th Cause of Action – Fraudulent Inducement-Concealment:<br><br>Defendant contends this claim is barred by the three-year statute of limitations for fraud under Code of Civ. Proc. § 338(d).<br><br>Here, Plaintiff's complaint alleges, "Plaintiff discovered Defendant's wrongful conduct alleged herein shortly before filing this Complaint as the Subject Vehicle continued to exhibit symptoms of defects following Defendant's unsuccessful attempts to repair them. However, Defendant failed to provide restitution pursuant to the Song-Beverly Consumer Warranty Act."<br><br>At the pleading stage, this allegation is sufficient to show that Plaintiff discovered the facts constituting fraud within less than three years before filing his complaint.<br><br>Defendant shall give notice. |